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Case Number: 23STCV27464 Hearing Date: June 23, 2026 Dept: 11

Final

Approval of Class Action Settlement

Department SSC-11

Hon. Bruce G. Iwasaki

Trisha Casas v. Secret Charm LLC

Case

No.: 23STCV27464

Hearing: June 23, 2026

TENTATIVE RULING

The Court grants final approval of the settlement and

awards/approves the following: (1) $247,950.12 for attorney fees to Class Counsel, Justice Law Corporation; (2)

$21,363.46 for litigation costs to Class Counsel; (3) enhancement payment in the amount of $7,500 to Plaintiff Trisha Casas; and (4) $8,650 for settlement administration costs to ILYM Group, Inc.

Class Counsel is ordered to lodge

a proposed Order consistent with this ruling and a separate judgment containing the class definition, release language, and a statement that no class members opted out of the settlement by __________________, 2026.

BACKGROUND

Plaintiff

Trisha

Casas sues her former employer, Defendant Secret Charm LLC, for alleged wage and hour violations. Plaintiff seeks to represent a class of Defendant’s current and former non-exempt employees.

On November

8, 2023, Plaintiff filed a putative wage and hour class action complaint against Defendant alleging causes of action for: (1) Violation of California Labor Code §§ 510 and 1198 (Unpaid Overtime); (2) Violation of California Labor Code §§ 226.7 and 512(a) (Unpaid Meal Period Premiums); (3) Violation of California Labor Code § 226.7 (Unpaid Rest Period Premiums); (4) Violation of California Labor Code §§ 1194 and 1197 (Unpaid Minimum Wages); (5) Violation of California Labor Code §§ 201 and 202 (Final Wages Not Timely Paid); (6) Violation of California Labor Code § 226(a) (Non-Compliant Wage Statements); (7) Violation of California Labor Code §§ 2800 and 2802 (Unreimbursed Business Expenses); (8) Violation of California Business & Professions Code §§ 17200, et seq.

On March 10, 2025, the Parties remotely attended mediation with the mediator Lisa Klerman, which resulted in settlement via a mediator's proposal. The terms of settlement were finalized in the long-form Class Action and PAGA Settlement Agreement, a copy of which was filed with the Court on June 3, 2025.

On December 15, 2025, after the parties filed further briefing to address concerns raised by the Court, preliminary approval of the settlement was granted.

Notice was given to the Class Members as ordered. (See Declaration of Amanda Howard ("Howard Decl.")).

Now before the Court is the Motion for Final Approval of the settlement.

SETTLEMENT CLASS DEFINITION

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"Class" and "Class Member" means all current and former hourly-paid or non-exempt employees of Defendant within the State of California at any time during the Class Period. (¶A.4)

"Class Period" means the period from November 8, 2019, through March 14, 2025.

(¶A.11)

· "Participating Class Member" means a Class

Member who does not submit a valid and timely Request for Exclusion from the

Settlement. (¶A.26)

TERMS OF SETTLEMENT AGREEMENT

The

essential terms are as follows:

·

The

Gross Settlement Amount ("GSA") after application of the escalator clause is $743,850.35,

non-reversionary. The initial GSA was $720,000. (¶C.1)

o Escalator Clause: If it is determined that

the number of Workweeks through the Class Period exceeds 7.5% or more of 23,870

(i.e., more than 25,660 Workweeks), then at Defendant's option, either the: (1)

Gross Settlement Amount shall increase proportionally over the 7.5% increase

(i.e., if the number of Workweeks increases by 8.5%, the Gross Settlement

Amount will increase by 1 %); or (2) Class Period shall end as of the date the

number of Workweeks within the Class Period reaches 25,660 Workweeks. (¶H)

o At preliminary approval, the settlement

administrator represented that Class Data provided by Defense Counsel on

December 3, 2025 indicated that there are 26,510 Workweeks during the Class

Period, and as such, the Escalator Clause was triggered. (Declaration of Amanda Howard ISO Prelim, ¶6.) Defendant opted to increase the Gross Settlement Amount from $720,000.00 by 3.31% or $23,850.35. The escalated Gross Settlement Amount is $743,850.35. (Id. at ¶7.)

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The Net Settlement Amount ("Net") estimated at preliminary approval ($445,900.23) is the GSA minus the following:

Up to $247,950.12 (33 1/3% of escalated GSA) for attorneys' fees (Amended Order Granting Motion for Preliminary Approval, ¶8);

Up to $25,000 for attorneys' costs (¶C.2.a);

Up to $10,000 for a Service Payment to the class representative (¶C.2.b); and

o Up to $15,000 for costs of settlement administration (¶C.2.c)

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Defendant

shall separately pay any and all employer payroll taxes owed on the Wage

Portions of the Individual Class Payments. (¶C.1)

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Class

Members shall not be required to submit a claim form in order to receive an

individual settlement payment. (¶C.1)

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Individual Settlement Payment Calculation: Each Participating Class Member will receive

an Individual Class Payment calculated by: (a) dividing the Net Settlement

Amount by the total number of Workweeks worked by all Participating Class

Members during the Class Period; and (b) multiplying the result by each

Participating Class Member's Workweeks during the Class Period. (¶C.2.d) Non-Participating Class Members will not receive any

Individual Class Payments. The Administrator will allocate amounts equal to

their Individual Class Payments to the Net Settlement Amount for distribution

to Participating Class Members on a pro rata basis. (¶C.2.d.ii)

o Tax Allocation: Individual Class Payment to the Class

Members shall be allocated as follows: 20% to wages, 80% to penalties and

interest. (¶C.2.d.i)

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"Response

Deadline" means forty-five (45) calendar days after the Administrator mails the

Class Notice to Class Members and shall be the last date on which Class Members

may: (a) fax, email, or mail Requests for Exclusion from the Settlement; or (b)

fax, email, or mail his or her Objection to the Settlement. Class Members to

whom Class Notices are resent after having been returned undeliverable to the

Administrator shall have an additional fourteen (14) calendar days beyond the

Response Deadline has expired. (¶A.32) The same deadline applies to the

submission of workweek disputes. (¶G.6.a)

o

Defendant

shall have the right, in its sole discretion, to revoke the settlement and

their conditional stipulation to class certification for settlement purposes

prior to the final fairness hearing if ten percent (10%) or more settlement

Class Members opt out of the Settlement. (¶K)

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Funding

of Settlement: Defendant shall fund the Gross Settlement

Amount and fund all employer payroll taxes owed on the Wage Portion of the

Individual Class Payments by transmitting the funds to the Administrator no later than fourteen (14) calendar days from the Effective Date. (¶D.2)

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Disbursement:

Within fourteen (14) calendar days after Defendant fully funds the Gross Settlement Amount, the Administrator will mail checks for the Class Counsel Fees Payment, Class Counsel Litigation Expenses Payment, Class Representative Service Payment, Administration Expenses Payment, and Individual Class Payments. Disbursement of the Class Counsel Fees Payment, Class Counsel Litigation Expenses Payment, and Class Representative Service Payment shall not precede disbursement of Individual Class Payments. (¶D.3)

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Uncashed Settlement Checks: The face of each check shall state checks that are not cashed within one hundred eighty (180) calendar days after the date of mailing will be voided. (¶D.3.a) For any Class Member whose settlement check is uncashed and cancelled after the void date, the Administrator shall transmit the funds represented by such checks to the California Controller's Unclaimed Property Fund in the name of the Class Member, thereby leaving no "unpaid residue" subject to the requirements of Code of Civil Procedure section 384, subdivision (b). (¶D.3.c)

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The

settlement administrator will be ILYM Group, Inc. (¶A.2)

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Releases of Claims.

Effective on the date when Defendant fully funds the Gross Settlement Amount and funds all employer payroll taxes owed on the Wage Portion of the Individual Class Payments, Plaintiff, Class Members, and Class Counsel will release claims against all Released Parties as follows: (¶E)

o Release

by Participating Class Members: All Participating Class Members, on behalf of themselves and their former and present representatives, agents, attorneys, heirs, administrators, successors, and assigns, release the Released Parties from liability for all claims under state or local law, whether statutory, common law, or administrative law, that were alleged, or could have been alleged, based on the facts contained in the Operative Complaint and that occurred during the Class Period. This includes violation of: (a) Labor Code sections 510 and 1198 (unpaid overtime); (b) Labor Code sections 226.7 and 512(a) (unpaid meal period premiums); (c) Labor Code section 226.7 (unpaid rest period premiums); (d) Labor Code sections 1194 and 1197 (unpaid minimum wages);

(e) Labor Code sections 201 and 202 (final wages not timely paid); (f) Labor Code section 226(a) (non-compliant wage statements); (g) Labor Code sections 2800 and 2802 (unreimbursed business expenses); and (h) claims for violations of the Business & Professions Code section 17200, et seq. Participating Class Members do not release any other claims, including claims for vested benefits, wrongful termination, violation of the Fair Employment and Housing Act, unemployment insurance, disability, social security, workers' compensation, or claims based on facts occurring outside the Class Period. (¶E.2)

o "Released Parties" means Defendant and its past, present, and future parent companies, shareholders, members, predecessors, successors, all affiliates, subsidiaries, divisions, officers, directors, owners, partners, units, principals, predecessors, successors, heirs, assigns, agents, insurers, employees, and stockholders. (¶A.30)

Named Plaintiff will additionally provide a general release and §1542 waiver. (¶E.1)

ANALYSIS OF SETTLEMENT AGREEMENT

A.

Does a presumption of fairness exist?

The Court preliminarily found in its Order of

December

15, 2025 that the

presumption of fairness should be applied.

No facts have come to the Court’s attention that would alter that

preliminary conclusion. Accordingly, the

settlement is entitled to a presumption of fairness as set forth in the

preliminary approval order.

B.

Is the settlement fair, adequate, and

reasonable?

The settlement was preliminarily found to be

fair, adequate and reasonable. Notice

has now been given to the Class.

Reaction

of the class members to the proposed settlement.

Number of class members: 331 (Howard Decl., ¶6.)

Number of notice packets mailed: 331 (Id. at ¶7.)

Number of undeliverable notices: 4 (Id. at ¶9.)

Number of opt-outs: 0 (Id. at ¶11.)

Number of objections: 0 (Id. at ¶12.)

Number of participating class members: 331 (Id. at ¶13.)

Average individual payment: $1,377.30 (Id. at ¶15.)

Highest estimated payment: $4,815.10 (Ibid.)

The Court finds that the notice was given as directed and conforms to due process requirements. Given the reactions of the Class Members to the proposed settlement and for the reasons set for in the Preliminary Approval order, the settlement is found to be fair, adequate, and reasonable.

C. Attorney Fees and Costs

Class Counsel requests an award of $247,950.12 in fees and $21,363.46 in costs. (Memo ISO Final at 8:16-17.) The Settlement Agreement provides for fees of up to $247,950.12 (33 1/3% of escalated GSA) and up to $25,000 for costs (¶C.2.a).

“Courts recognize two methods for calculating attorney fees in civil class actions: the lodestar/multiplier method and the percentage of recovery method.” (Wershba v. Apple Computer, Inc. (2001) 91 Cal.App.4th 224, 254.) Here, class counsel request attorney fees using the percentage method, as crosschecked by lodestar.

(Memo ISO Final at pp. 13-22.)

In

common fund cases, the Court may employ a percentage of the benefit method, as

cross-checked against the lodestar. (Laffitte

v. Robert Half Int'l, Inc. (2016) 1 Cal.5th 480, 503.) The fee request represents one-third of the gross settlement amount, which is the

average generally awarded in class actions.

(See In re Consumer Privacy Cases

(2009) 175 Cal.App.4th 545, 558, fn. 13 ["Empirical studies show that,

regardless whether the percentage method or the lodestar method is used, fee

awards in class actions average around one-third of the recovery."].)

Class

Counsel has provided information, summarized below, from which the lodestar may

be calculated:

Attorney

Rates

Hours

Totals

Douglas Han

$900

108.4

$97,560.00

Shunt Tatavos-Gharajeh

$800

101.8

$81,440.00

Shelby Miner

$600

85.9

$51,540.00

Totals

296.1

$230,540.00

(Declaration of Douglas Han ISO Final, ¶¶10-11.)

Counsel's percentage-based fee request is higher

than the unadjusted lodestar, and would represent application of a multiplier

of approximately 1.08x to reach.

Here, the $247,950.12 fee

request represents a reasonable percentage of the total funds paid by

Defendant. Notice of the fee request was provided to class members in the

notice packet, and no one objected. (Carey Decl., ¶11, Exhibit A.)

As for costs, Class Counsel is requesting $21,363.46. This is less than the $25,000 cap provided at preliminary approval, for which Class Members were given notice and did not object. (Carey Decl., ¶11, Exhibit A.) Counsel represents that costs include, but are not limited to: mediation fees, expert fees, filing and service fees, and Case Anywhere. (Han Decl. ISO Final, ¶22, Exhibit 5.) The costs appear to be reasonable in amount and reasonably necessary to this litigation.

Based on the above, the recommendation is to award $247,950.12 in fees and $21,363.46 in costs.

D. Incentive Award

The settlement provides for an enhancement award in the amount of $10,000 to Plaintiff Trisha Casas for her contributions to the action. (Memo ISO Final at 23:2-3.)

Plaintiff represents that her contributions to this action included: (a) gathering her employment documents (e.g., personnel records) to give her attorneys an idea of the policies, practices, and procedures that she was exposed to; (b) reviewing documents with her attorneys and answering questions and inquiries; (c) providing the names and contact information of the putative class members for her attorneys to locate and interview to corroborate the allegations; (d) speaking with other current and former employees of Defendant to gather support for her claims; (e) providing guidance regarding other employees' duties and responsibilities to help determine commonality and typicality; (f) discussing her employment experience (and work environment); (g) reviewing the operative complaint and Settlement Agreement (and exhibit); (h) helping her attorneys develop strategies to obtain additional documents from Defendant and other sources; (i) looking over the formal discovery requests before propounding them, including the responses; and (j) preparing for and making herself available all day to participate in and provide her input for mediation. She estimates spending 30 hours on the case. (Declaration of Trisha Casas ISO Final, ¶5.)

Based on the above, the recommendation is to grant the enhancement payment in the amount of $7,500 to Plaintiff.

E. Settlement Administration Costs

The settlement administrator, ILYM Group, is requesting $8,650 for the costs of settlement administration. (Carey Decl., ¶17.) This is less than the cap of $15,000 provided for in the Settlement Agreement (¶C.2.c) and disclosed to class members in the Notice, to which there were no objections. (Carey Decl., ¶11, Exhibit A.) Based on the above, the recommendation is to award costs in the requested amount of $8,650.